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FACIAL RECOGNITION AT PROTEST SITES: SURVEILLANCE, DISSENT AND THE CONSTITUTIONAL LIMITS OF STATE POWER

INTRODUCTION

On 13 August 2026, the Supreme Court agreed to hear a petition concerning the alleged deployment of facial-recognition technology and biometric surveillance at protest sites. The proceedings raise questions that extend beyond the use of a particular policing tool. At their core lies the question of how far the State may go in identifying and monitoring citizens while they exercise constitutionally protected rights. The use of Artificial Intelligence (AI) in policing is increasingly presented as a means of improving crime detection, identifying suspects and maintaining public order. Facial Recognition Technology (FRT), in particular, can enable law-enforcement authorities to identify individuals from images captured in public spaces.

The Delhi Police has maintained, in its affidavit, that the facial-recognition system is not itself the basis for taking action against an individual. According to the police, the technology functions as an initial identification mechanism for detecting persons whose images may correspond with individuals already appearing in criminal databases. This is followed by field verification before any action is taken. The police has also stated that the system is intended to identify persons with existing criminal records rather than conduct indiscriminate surveillance of ordinary protesters.

The constitutional difficulty arises when this technology is deployed in the context of

peaceful demonstrations. A protest is not merely a gathering in a public place; it is also a means through which citizens express disagreement, organise collectively and participate in democratic life. This concern assumed particular significance following reports of facial-recognition technology being deployed around Jantar Mantar during the 2026 students' and youth protests. The resulting dispute presents a fundamental question:

Can the State subject an entire gathering to biometric identification merely because some individuals within that gathering may be wanted by the law?

The answer requires examining not only the usefulness of facial recognition, but also its legal basis, purpose, scale, safeguards and impact on fundamental rights.



FACIAL RECOGNITION **SURVEILLANCE: FROM** **OBSERVATION TO IDENTIFICATION**

Facial Recognition Technology uses automated or semi-automated systems to identify or verify individuals by analysing facial characteristics.

At first glance, facial recognition may appear to be an extension of ordinary CCTV surveillance. However, there is an important constitutional distinction between the two.

A conventional CCTV camera primarily records events occurring in a particular location. It can assist the police in monitoring public spaces and reconstructing what happened during a particular incident. Facial

recognition goes a step further. It can transform an image into an identifiable individual by comparing a person's face with a database and associating that individual with a particular place, event or time. This distinction becomes especially significant at protest sites.

A person attending a demonstration may be exercising their constitutional rights without having committed any offence. If that person's face is automatically captured and compared against a police database, the State is no longer merely observing the gathering. It may be creating an identifiable record of that individual's participation in the protest.

Reports concerning Jantar Mantar indicated the use of a surveillance vehicle equipped with 360-degree cameras and live facial recognition. The stated purpose was to identify faces corresponding to databases containing images of known criminals, wanted persons and suspects.

The legal issue, therefore, is not simply whether the technology can assist policing. The more important questions are:

- What is the purpose for which it is deployed?
- How many people are subjected to the surveillance?
- What database is being used?
- How long is the information retained?
- Who can access it?
- What legal provision authorises the surveillance?
- What safeguards exist against misuse or wrongful identification?

In other words, the constitutional concern begins when observation becomes identification.



CONSTITUTIONAL LEGALITY

1. The Right to Privacy under Article 21

The constitutional analysis begins with the Supreme Court's landmark decision in *Justice K.S. Puttaswamy (Retd.) v. Union of India* MANU/SC/1044/2017. The nine-judge Constitution Bench recognised privacy as a fundamental right under the Constitution. Importantly, privacy is not limited to the physical confines of one's home. It encompasses personal autonomy, dignity and informational privacy. The Court's framework requires State interference with privacy to satisfy three essential conditions:

- a. There must be a law authorising the interference;
- b. The interference must pursue a legitimate State objective; and
- c. The interference must be proportionate to that objective.

The Court also stressed the importance of procedural safeguards to prevent arbitrary or excessive State action. These principles assume particular importance in the context of facial recognition because biometric information is inherently capable of identifying an individual with considerable precision. Once collected, such information may also be matched, retained, processed or potentially reused.

The critical question is: What legal authority permits the particular form of biometric surveillance being undertaken?

2. The Right to Protest under Articles 19(1)(a) and 19(1)(b)

The issue also implicates Articles 19(1)(a) and 19(1)(b) of the Constitution.

Article 19(1)(a) protects freedom of speech and expression, while **Article 19(1)(b)** protects the right to assemble peacefully and without arms, subject to constitutionally permissible restrictions. A protest represents one of the most direct forms of political expression. Surveillance at such gatherings can therefore have consequences beyond privacy.

Consider two situations.

In the first, a person knows that attending a protest means that they may be seen by the police. In the second, the person knows that an AI system may automatically identify their face, associate them with the protest and potentially retain or cross-reference that information.

The second possibility may affect the person's decision to participate in the first place. This is the chilling effect. Facial recognition may not physically prevent a person from protesting, but the possibility of identification can discourage the exercise of constitutional freedoms. This makes biometric surveillance particularly sensitive in the context of political demonstrations.

3. Does Entering a Public Place Mean Giving Up Privacy?

One argument in favour of facial-recognition surveillance is that protests take place in public spaces. A person who voluntarily enters such a space cannot reasonably expect to remain completely unseen. However, being visible in public is not necessarily equivalent to consenting to biometric identification.

A protester may reasonably understand that journalists, police officers and other members of the public can see them. That does not automatically mean that the individual has agreed to automated identification; comparison against criminal databases; creation of a record linking them to a protest;

retention of biometric information; sharing of such information with other agencies; or possible future use of the information for surveillance.

The constitutional distinction is therefore between being visible and being identifiable. Privacy does not disappear merely because a person enters a public place.



DOES THE CRIMINAL PROCEDURE (IDENTIFICATION) ACT, 2022 AUTHORISES FACIAL RECOGNITION AT PROTEST?

The Criminal Procedure (Identification) Act, 2022 is likely to be central to the statutory debate. The Act permits the collection of “measurements” for purposes connected with identification and criminal investigation. The definition of measurements is broad and includes fingerprints, palm prints, footprints, photographs, iris and retina scans, physical and biological samples, behavioural attributes and other specified examinations.

Section 3 identifies categories of persons from whom such measurements may be taken, including persons who have been convicted, persons involved in specified preventive proceedings, persons arrested in connection with an offence and persons detained under preventive-detention laws.

Section 5 further permits a Magistrate, where satisfied that it is expedient for an investigation or proceeding, to direct a person to provide measurements.

However, the circumstances surrounding facial recognition at a protest raise a substantially different question. The controversy is not necessarily about obtaining identifying

information from a particular arrested suspect pursuant to a judicial direction. Instead, it concerns the possibility of deploying facial recognition over an entire crowd, automatically processing the faces of persons attending a peaceful assembly and comparing them against police databases.

The petition before the Supreme Court reportedly argues that neither the Delhi Police's standing orders governing protests nor the Criminal Procedure (Identification) Act provides authority for such indiscriminate biometric surveillance of peaceful assemblies.

This creates an important statutory distinction:

A power to collect identifying information from specified persons for the purposes of a criminal investigation does not necessarily amount to a power to conduct real-time biometric surveillance of an entire public gathering.

Whether existing legislation can sustain such a broad deployment is therefore a question requiring judicial scrutiny.



THE PROPORTIONALITY TEST: WHERE SHOULD THE LINE BE DRAWN?

Even assuming that the State can establish a legal basis for facial-recognition surveillance, constitutional scrutiny does not end there. The proportionality framework requires a rights-restricting measure to satisfy four broad stages:

1. Legitimate aim
2. Rational connection
3. Necessity or minimal impairment
4. Balancing of rights and public interest
5. Legitimate Aim

Preventing crime, locating wanted offenders and maintaining public order are recognised governmental objectives. The State can therefore make a strong case at the first stage.

Rational Connection: Facial recognition can logically assist law-enforcement authorities in identifying a wanted person within a large gathering. There is consequently a rational connection between the technology and objectives such as crime detection.

Necessity: The more difficult question is whether scanning an entire gathering is actually necessary.

Could the same objective be achieved through less intrusive alternatives, such as:

- targeted surveillance of identified suspects;
- conventional investigation;
- intelligence gathering;
- review of CCTV footage following a specific incident;
- judicially authorised identification; or
- a narrowly tailored watchlist?

If substantially similar results can be achieved through less intrusive means, indiscriminate biometric surveillance becomes more difficult to justify.

Balancing: The final stage requires weighing the State's security interests against the impact on individual rights.

Facial recognition may enable the police to identify wanted persons rapidly. But widespread deployment may simultaneously create risks involving:

- loss of anonymity;
- biometric profiling;
- wrongful identification;
- excessive retention of data;
- misuse of databases;
- discriminatory effects;
- surveillance of innocent individuals; and
- reduced willingness to participate in demonstrations.

The constitutional difficulty increases as the number of innocent persons subjected to surveillance grows. The justification for scanning an entire gathering becomes harder to sustain if the surveillance of thousands of ordinary participants is premised merely on the possibility that one person may be wanted.

COMPARATIVE PERSPECTIVE:

1. The European Union

The European Union offers an important comparative framework for considering the regulation of facial-recognition technology.

Under Regulation (EU) 2024/1689, real-time remote biometric identification in publicly accessible spaces for law-enforcement purposes is generally prohibited, subject to narrowly defined exceptions. These exceptions include certain serious threats, specific searches for victims or missing persons and the identification of suspects in relation to specified serious offences. Even where an exception applies, the regulatory framework imposes limitations relating to the temporal, geographical and personal scope of the deployment. Prior authorisation by a judicial or independent administrative authority is generally required, alongside additional procedural safeguards including fundamental-rights impact assessment requirements. The broader principle emerging from the EU framework is significant. The more intrusive the surveillance technology, the more specific the legal authority and safeguards governing its use should be. India need not replicate the European model word-for-word. However, the comparative experience demonstrates an important constitutional proposition: technological capability does not, by itself, create legal authority.

2. Sri Lanka

The Personal Data Protection Act, No. 9 of 2022 classifies facial recognition data as biometric data under Section 56, granting it heightened protection as a special category of

personal data. Under Section 5(b) read with Schedule II, capturing and processing facial biometric data without explicit consent or express statutory authorization constitutes unlawful processing. Deploying mass surveillance in public spaces directly triggers Section 24(1)(b), which legally mandates a prior Data Protection Impact Assessment (DPIA) for the systematic monitoring of publicly accessible areas. When carried out for public order or national security, Section 25(7) further requires mandatory consultation with the Data Protection Authority. Operating live facial recognition tools without fulfilling these statutory safeguards violates data minimization and lawfulness mandates under Sections 5, 6, and 7, exposing controllers to binding cessation directives under Section 35 and severe administrative penalties under Section 38.



INDIA'S LEGISLATIVE GAP

The controversy also exposes a broader legislative gap: India does not yet have a dedicated statute comprehensively regulating police use of facial-recognition technology.

A Facial Recognition Technology (Regulation of Police Powers) Bill, 2023 was introduced as a Private Member's Bill in the Rajya Sabha. The proposed framework contemplated restrictions on police deployment of facial recognition and judicial involvement in certain forms of use. However, the Bill remains pending and has not become enacted law. The absence of a dedicated statute does not necessarily mean that every use of facial recognition by the police is unconstitutional. Existing criminal-procedure and policing laws

may confer relevant powers depending on the circumstances.

The difficulty, however, is that modern facial-recognition systems are capable of identifying and potentially tracking large numbers of people capabilities that traditional policing legislation may not have specifically contemplated.

- A dedicated framework could therefore address questions such as:
- When can facial recognition be deployed?
- What offences should justify its use?
- Should prior judicial authorisation be mandatory for high-risk deployments?
- Should real-time facial recognition be regulated differently from post-event analysis?
- Who can access biometric databases?
- How long may data be retained?
- When must it be deleted?
- How should false matches be corrected?
- Can private technology vendors access biometric information?
- How can an individual challenge an identification?
- What form of independent oversight should exist?

These questions are central to ensuring that technological policing powers remain subject to constitutional limits.

THE ROAD AHEAD – TOWARDS A CONSTITUTIONALLY SOUND FRAMEWORK FOR FACIAL RECOGNITION

Future Indian framework governing facial recognition should be built around three central principles i.e Necessity, Specificity and Accountability.

- 1. Clearly Defined Purposes:** Facial recognition should be permitted only for clearly specified purposes. Broad or undefined surveillance powers create greater opportunities for misuse.

2. Targeted Identification, Not Mass Surveillance:

The law should distinguish between identifying a particular suspect and scanning every person at a protest to determine whether anyone is a suspect. These are constitutionally different exercises.

3. Prior Independent or Judicial Authorisation:

High-risk deployments, particularly real-time biometric surveillance of public gatherings, should be subject to prior independent or judicial scrutiny.

4. Strict Retention and Deletion Requirements:

Individuals who are neither suspects nor connected with an offence should not have their biometric information retained indefinitely.

5. Transparency and Accountability:

There should be meaningful transparency concerning the technology being used, the databases against which individuals are matched, accuracy standards and the involvement of private technology vendors.

6. Effective Remedies for Wrongful Identification:

Individuals must have a meaningful mechanism to challenge an erroneous identification and obtain correction or deletion of wrongly processed information.

Such safeguards would not prevent legitimate use of facial recognition for law-enforcement purposes. Instead, they would ensure that technological efficiency remains subordinate to constitutional guarantees.

KEY TAKEAWAY

The Jantar Mantar controversy raises an issue that is likely to become increasingly important as AI becomes integrated into policing. The State undoubtedly possesses a legitimate interest in preventing crime, maintaining

public order and identifying offenders. Facial recognition may assist in achieving these objectives. But effectiveness is not the constitutional test. The State must establish a valid legal basis, pursue a legitimate objective and demonstrate that the method adopted is proportionate to that objective. Puttaswamy makes clear that entering a public space does

not automatically extinguish the right to privacy. At the same time, Articles 19(1)(a) and 19(1)(b) protect citizens' ability to speak, dissent and assemble peacefully.

The critical distinction, therefore, is between watching a protest and identifying everyone at the protest. If the police possess credible information that a particular wanted individual is present at a demonstration, targeted identification may be capable of stronger constitutional justification. But scanning an entire gathering on the assumption that one or more persons might be wanted presents a substantially different constitutional question.

Watching a protest is not the same as identifying everyone at it. As AI-driven policing expands, facial recognition must remain subject to legality, necessity and proportionality not merely the State's claim of public safety.

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